

Law No. (9) of 2023
Regulating the Operation of
Autonomous Vehicles in the Emirate of Dubai^[1]

We, Mohammed bin Rashid Al Maktoum, Ruler of Dubai,

After perusal of:

Federal Law No. (5) of 1985 Issuing the Civil Code of the United Arab Emirates and its amendments;

Federal Law No. (21) of 1995 Concerning Road Traffic, its Implementing Bylaw, their amendments, and the resolutions issued in pursuance thereof;

Federal Law No. (15) of 2020 Concerning Consumer Protection;

Federal Law by Decree No. (20) of 2020 Concerning Specifications and Standards;

Federal Law by Decree No. (31) of 2021 Issuing the Crime and Punishment Law;

Federal Law by Decree No. (45) of 2021 Concerning Protection of Personal Data;

Federal Law No. (3) of 2022 Regulating Commercial Agencies;

The Dubai Police Law of 1966;

Law No. (3) of 2003 Establishing the Executive Council of the Emirate of Dubai;

Law No. (17) of 2005 Establishing the Roads and Transport Authority and its amendments;

Law No. (5) of 2021 Concerning the Dubai International Financial Centre;

Decree No. (22) of 2009 Concerning Special Development Zones in the Emirate of Dubai;

Executive Council Resolution No. (3) of 2019 Regulating Test Runs of Autonomous Vehicles in the Emirate of Dubai; and

The legislation establishing and regulating free zones in the Emirate of Dubai,

Do hereby issue this Law.

Title of the Law

Article (1)

This Law will be cited as "Law No. (9) of 2023 Regulating the Operation of Autonomous Vehicles in the Emirate of Dubai".

Definitions

Article (2)

The following words and expressions, wherever mentioned in this Law, will have the meaning indicated opposite each of them unless the context implies otherwise:

UAE:	The United Arab Emirates.
Emirate:	The Emirate of Dubai.
Ruler:	His Highness the Ruler of Dubai.
Executive Council:	The Executive Council of the Emirate of Dubai.
RTA:	The Roads and Transport Authority.
Director General:	The director general and chairman of the Board of Executive Directors of the RTA.
Road:	Any public way on which traffic movement is allowed without a special permission, and any public place which is wide enough to allow Vehicles to pass through it and which is accessible to the public with or without consideration.
Vehicle:	Any motorised machine, Pedal Cycle, Motorcycle, Carriage, or other machine designed to run on Roads, whether mechanically propelled or otherwise. This includes Tractors.
Autonomous Vehicle:	A Vehicle that is designed to run on Roads, that is operated by an Autonomous Driving System, and that meets the specifications and standards adopted by the RTA and the Competent Entities. This does not include Vehicles equipped with driver assistance systems, such as lane departure warning, cruise control, automatic emergency braking, and parking assistant systems.
Autonomous Driving System:	A system which is comprised of a set of devices and software approved by the manufacturer of an Autonomous Vehicle, and which enables interaction between the Autonomous Vehicle and Road elements and controls its movement without any human intervention.
Traffic Sign:	All signs, signals, instructions, warnings, and other information displayed on Roads using traditional or electronic means. These include signs indicating traffic directions, inhabited places and distances between them, maximum speed limits, road priorities, and parking areas; and may be in the form of posts, poles, pavement markings, or electronic signs or signals, including traffic lights or any warnings or other controls regulating traffic flow and movement.

Passenger	A person using an Autonomous Vehicle to travel from one place to another.
Agent:	A natural or legal person with whom rests the exclusive right to distribute Autonomous Vehicles under a Commercial Agency contract.
Activity:	Any activity involving the use of Autonomous Vehicles, as determined by the relevant resolutions of the Chairman of the Executive Council.
Operator:	A Person authorised by the RTA to conduct the Activity, including the owner of an Autonomous Vehicle.
Permit:	A document issued by the RTA authorising the conduct of the Activity.
Permit Holder:	A Person to whom a Permit is issued under this Law and the resolutions issued in pursuance hereof.
Competent Entity:	A government entity which is concerned, pursuant to its governing legislation, with Roads, Autonomous Vehicles, or any other matter provided for in this Law.
Person:	A natural person or a public or private legal person.

Scope of Application

Article (3)

The provisions of this Law apply in all zones across the Emirate, including in Special Development Zones and free zones, such as the Dubai International Financial Centre.

Objectives of the Law

Article (4)

This Law aims to:

1. implement the Emirate's strategy for transformation into smart mobility using artificial intelligence;
2. regulate the operation of Autonomous Vehicles, in accordance with the safety and quality requirements and the best international standards and practices adopted in this respect;
3. attract investments in all Activities related to Autonomous Vehicles; and
4. address any regulatory or legal challenges that may result from using artificial intelligence in the field of transport.

Functions of the RTA

Article (5)

Without prejudice to the functions vested in the Competent Entities, the RTA will have the duties and powers to:

1. develop the policies and strategic plans required to enhance the efficiency, operation, and development of Autonomous Vehicles in the Emirate;
2. define the categories and types of Autonomous Vehicles in accordance with the standards, specifications, and rules prescribed by the Competent Entities;
3. approve and regularly review the technical, operational, security, safety, and Operator performance standards that must be met in order for Autonomous Vehicles to travel on Roads;
4. define the stages of operating Autonomous Vehicles in the Emirate based on the operation plans adopted by the relevant resolutions of the Chairman of the Executive Council;
5. determine the Roads, areas, and the routes on which the travel of Autonomous Vehicles is allowed, and prescribe their speed limits and all other matters related to regulating their use on Roads;
6. develop the infrastructure required for the operation of Autonomous Vehicles, in accordance with the relevant adopted standards and specifications;
7. develop the Traffic Solutions, the rules, and the procedures required for maintaining the safety of traffic in the Emirate, among which are the traffic rules for pedestrians and Vehicles, including Autonomous Vehicles, with a view to ensuring the safety of Road Users and reducing traffic violation rates;
8. license Autonomous Vehicles in accordance with the relevant conditions and procedures adopted by the RTA;
9. conduct technical inspections of Autonomous Vehicles in accordance with the relevant standards, rules, and procedures adopted by the RTA;
10. determine, in coordination with the Competent Entities in the Emirate, the Activities in which the use of Autonomous Vehicles is permitted; submit the same to the Chairman of the Executive Council for approval; and issue the necessary Permits to conduct these Activities, in accordance with the relevant conditions and procedures adopted by the RTA;
11. compile and classify the Data generated from the operation and use of Autonomous Vehicles in the Emirate;
12. monitor and inspect Permit Holders to verify their compliance with the provisions of this Law and the resolutions issued in pursuance hereof;

13. cooperate and coordinate with the Competent Entities and form joint work teams to achieve the objectives of this Law;
14. receive, investigate, and take the necessary actions in respect of, the complaints filed against Permit Holders;
15. conclude agreements and establish partnerships with the Competent Entities and with international organisations, institutions, and agencies concerned with Autonomous Vehicles with a view to ensuring the achievement of the objectives of this Law;
16. develop, in coordination with the Competent Entities, the plans, strategies, and procedures required for facilitating investment in the Activities related to Autonomous Vehicles; and
17. exercise any other duties or powers required for the achievement of the objectives of this Law, as assigned to it by the Ruler or the Chairman of the Executive Council.

Using Autonomous Vehicles and Conducting Activities

Article (6)

- a. No Autonomous Vehicle may travel on a Road unless it is licensed by the RTA. The licence will be issued in accordance with the conditions and procedures prescribed by the legislation in force, including this Law and the resolutions issued in pursuance hereof.
- b. No Person may conduct an Activity in the Emirate without first obtaining a Permit. The Permit will be issued in accordance with the conditions and procedures prescribed by the relevant resolutions of the Director General.
- c. An Autonomous Vehicle licensed by a concerned licensing entity in the UAE, other than the RTA, pursuant to the legislation regulating the use of Autonomous Vehicles may not travel within the Emirate without first obtaining the Permit referred to in paragraph (b) of this Article.

Technical Inspection of Autonomous Vehicles

Article (7)

- a. Technical inspections must be conducted on Autonomous Vehicles. The types, frequency, requirements, and standards of inspection will be prescribed by a resolution to be issued by the Director General in this respect.
- b. The RTA may, where required, recall any Autonomous Vehicle for technical re-inspection and take the necessary action in respect of that Vehicle based on the results of that re-inspection.

Requirements for Licensing Autonomous Vehicles

Article (8)

To be licensed, an Autonomous Vehicle must:

1. be sourced from the authorised local Agent for that type of Autonomous Vehicles in the Emirate, at the time of initial registration;
2. be registered in its source country or country of origin, and have a proven record of use on the public Roads designated for its category and type in that country;
3. pass the technical inspection prescribed by the RTA;
4. be equipped to read and respond to Traffic Signs, and capable of responding to Road priorities and travelling on Roads;
5. meet the security and safety standards and specifications, and be equipped with the systems required to interact with Roads and their users in accordance with the relevant guidelines adopted by the RTA;
6. conform to the specifications approved in the UAE;
7. be insured with an insurance company licensed to operate in the UAE, as prescribed by the Director General in this respect; and
8. meet any other conditions determined pursuant to the relevant resolutions issued by the Director General.

Autonomous Vehicle Licensing Procedures

Article (9)

The licensing procedures of Autonomous Vehicles and the documents required for issuing the relevant licences will be prescribed by a resolution to be issued by the Director General in this respect.

Maintenance, Repair, and Modification of Autonomous Vehicles

Article (10)

- a. The maintenance, repair, and modification of an Autonomous Vehicle, including its Autonomous Driving System, may be performed only through an Agent.
- b. No modification, upgrade, or update of the features related to the Autonomous Driving System, operational design domain, or electronic applications of an Autonomous Vehicle may be performed without first obtaining the relevant approval of the RTA.

- c. The RTA will issue the approval referred to in paragraph (b) of this Article upon verifying that the requested modification, upgrade, or update would not affect the performance of the Autonomous Vehicle or endanger lives or property.

Obligations of Operators

Article (11)

An Operator must:

1. comply with the provisions of this Law, the resolutions issued in pursuance hereof, and other legislation in force in the Emirate, taking into account the unique nature of Autonomous Vehicles;
2. comply with the terms of his Permit;
3. develop instructions for using Autonomous Vehicles and provide Passengers with these instructions in the manner, and using the means, the Operator deems suitable. These instructions must indicate how to set and change the destination of the Vehicle, how to communicate and deal with the Vehicle in case of malfunctions, and how to safely exit the Vehicle in emergencies;
4. obtain a licence for the Autonomous Vehicle before operating it on Roads;
5. conduct periodic maintenance of the Autonomous Vehicle within the time frames prescribed by the Agent;
6. subscribe to the systems prescribed by the RTA;
7. ensure that the Autonomous Driving System of the Autonomous Vehicle is capable of connecting it to the relevant systems adopted by the RTA;
8. operate the Autonomous Vehicle for its intended purpose;
9. provide the RTA and the Competent Entities with any data they request;
10. immediately notify the Competent Entities of any accident involving the Autonomous Vehicle;
11. remove the Autonomous Vehicle from the Road and secure it in case of its breakdown or any malfunction of its Autonomous Driving System, and notify the Agent of the same;
12. not use the data retrieved in operating Autonomous Vehicles for other than the purpose of operating these Vehicles, without first obtaining the relevant approvals from the RTA; and
13. perform any other obligations determined pursuant to the relevant resolutions of the Director General.

Obligations of Agents

Article (12)

An Agent must:

1. comply with the provisions of this Law, the resolutions issued in pursuance hereof, and other legislation in force in the Emirate, taking into account the unique nature of Autonomous Vehicles;
2. comply with the terms of his Permit;
3. provide After-sales Services, including the provision of the Warranty, spare parts, and repair workshops of Autonomous Vehicles;
4. update and upgrade the Autonomous Driving Systems of Autonomous Vehicles to cope with the updates made to the traffic and Road systems;
5. ensure that the technical systems of Autonomous Vehicles are compatible with all technical systems of the Competent Entities;
6. provide qualified and trained technical staff specialised in inspecting and maintaining all components of the Autonomous Vehicles and Autonomous Driving Systems; and
7. perform any other obligations determined pursuant to the relevant resolutions of the Director General.

Obligations of Passengers

Article (13)

A Passenger must:

1. comply with the security and safety requirements prescribed by the RTA, Operators, Agents, and Competent Entities while using the Autonomous Vehicle;
2. refrain from tampering with the systems and software of the Autonomous Vehicle while using it;
3. not bring into the Autonomous Vehicle any items that may compromise its safety or the safety of its systems, as prescribed by the RTA in this respect; and
4. perform any other obligations determined pursuant to the relevant resolutions of the Director General.

Civil Liability for Remedy of Damage

Article (14)

- a. An Operator will be liable for compensating for any damage to property or harm to individuals caused by the Autonomous Vehicle. This will not prejudice the right of the Operator to take recourse against the Person actually responsible for the damage, in accordance with the general rules of liability prescribed in this respect.
- b. The RTA will not be liable to third parties for any damage they may sustain as a result of using Autonomous Vehicles.

Criminal Liability

Article (15)

The provisions of the legislation in force in the Emirate, including the above-mentioned Federal Law No. (21) of 1995 and Federal Law by Decree No. (31) of 2021, will apply to the acts committed by Autonomous Vehicles and constituting crimes punishable by the penalties prescribed for their perpetrators under such legislation.

Sale and Transfer of Ownership of Autonomous Vehicles

Article (16)

Autonomous Vehicles may be sold to Operators only by the authorised Agents. The ownership of an Autonomous Vehicle may not be transferred from an Operator to another without first obtaining the relevant approval of the RTA. This approval will be issued in accordance with the relevant requirements and procedures prescribed by the RTA.

Outsourcing

Article (17)

The RTA may, in accordance with the legislation in force, outsource any of its duties and powers under this law to any entity pursuant to an agreement concluded for this purpose. This agreement will state its term and the rights and obligations of both parties.

Fees

Article (18)

In return for issuing the licences, Permits, and approvals, and providing other services, as stipulated in this Law and the resolutions issued in pursuance hereof, the RTA will collect the fees prescribed by the relevant resolutions of the Chairman of the Executive Council.

Administrative Penalties and Fines

Article (19)

- a. Without prejudice to any stricter penalty stipulated in any other legislation, a Person who violates the provisions of this Law or the resolutions issued in pursuance hereof will be punished by a fine of not less than five hundred dirhams (AED 500.00) and not more than twenty thousand dirhams (AED 20,000.00). Upon repetition of the same violation within one (1) year from the date of the previous violation, the amount of the fine will be doubled. A fine must not exceed fifty thousand dirhams (AED 50,000.00).
- b. The acts that constitute violations of this Law, or the resolutions issued in pursuance hereof, and the relevant fines prescribed for these violations will be determined pursuant to the relevant resolutions issued by the Chairman of the Executive Council.
- c. Imposing the fines stipulated in paragraph (a) of this Article will not, where applicable, prejudice the civil or criminal liability of the violator.

Law Enforcement

Article (20)

Without prejudice to the powers of the Dubai Police's personnel in recording traffic fines, the RTA employees, and the staff of the companies and corporations contracted by the RTA, who are nominated pursuant to a resolution of the Director General will have the capacity of law enforcement officers to record the acts committed in breach of the provisions of this Law and the resolutions issued in pursuance hereof. For this purpose, they may issue the necessary violation reports; and, where necessary, seek the assistance of police personnel.

Grievances

Article (21)

Any affected party may submit a written grievance to the Director General against any decisions or measures taken against him under this Law, or the resolutions issued in pursuance hereof, within thirty (30) days of being notified of the contested decision or

measure. The grievance will be determined, by a committee formed by the Director General for this purpose, within thirty (30) days of referring the grievance to this committee. The decision issued by the committee in respect of the grievance will be final.

Payment of Fees and Fines

Article (22)

The fees and fines collected pursuant to this Law and the resolutions issued in pursuance hereof will be paid to the Public Treasury of the Government.

Cooperation and Coordination

Article (23)

For the purposes of achieving the objectives of this Law and enabling the RTA to perform its functions hereunder, the concerned Government Entities in the Emirate, including the Competent Entities, must fully cooperate with the RTA and provide it with support and assistance when requested to do so.

Applicability of Traffic Law

Article (24)

Where this Law is silent, the provisions of the above-mentioned Federal Law No. (21) of 1995, or any superseding legislation, will apply taking into account the unique nature of Autonomous Vehicles.

Issuing Implementing Resolutions

Article (25)

With the exception of the resolutions which the Chairman of the Executive Council is exclusively authorised to issue under this Law, the Director General will issue the resolutions required for implementing the provisions of this Law. These resolutions will be published in the Official Gazette.

Repeals

Article (26)

Any provision in any other legislation is hereby repealed to the extent that it contradicts the provisions of this Law.

Publication and Commencement

Article (27)

This Law will be published in the Official Gazette and will come into force ninety (90) days after the date of its publication.

Mohammed bin Rashid Al Maktoum

Ruler of Dubai

Issued in Dubai on 6 April 2023

Corresponding to 15 Ramadan 1444 A.H.

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[1] *Every effort has been made to produce an accurate and complete English version of this legislation. However, for the purpose of its interpretation and application, reference must be made to the original Arabic text. In case of conflict, the Arabic text will prevail.*